

TENTATIVE RULING

Andree LeRoy, M.D. v. Natividad Medical Center; 25CV006580

County of Monterey's Demurrer to Plaintiff's First Amended Complaint:

The County of Monterey ("the County") demurs to Plaintiff's First Amended Complaint ("FAC"), pursuant to Code of Civil Procedure section 430.10. The County argues that the sole count in the FAC, for breach of contract, is barred by the statute of limitations and for the failure to comply with the Government Tort Claims Act. Additionally, the County argues the FAC is uncertain and fails to state facts sufficient to state a cause of action. Plaintiff Andree LeRoy, M.D. ("Plaintiff") opposes the Demurrer, arguing that the County has no standing to demur to the FAC because the entity sued is Natividad Medical Center and not the County. The court considers the Opposition, even though the Opposition is not signed and is a violation of Code of Civil Procedure section 128.7(a). The court also notes that no proof of service of the Summons and Complaint has been filed with the court; therefore, the court is unable to determine the entity served with those documents.

The court denies the County's Request for Judicial Notice ("RJN") of Plaintiff's failure to submit a Government Code Claim or Application for Leave to Present a Late Claim. Plaintiff does not allege compliance with the claims presentation requirement, but instead, Plaintiff argues that she was not required to comply with the claims presentation requirement.

The court grants the County's RJN of the following facts: the County is a governmental entity, which owns and operates Natividad Medical Center, which is a department within the County but is not a legal entity registered with the Secretary of State. (See Evid. Code § 452(h).) Based on those facts, it appears to the court that the County is the proper defendant in this action and as such, has standing to bring this Demurrer.

As to the government claims requirement, Plaintiff argues that she did not have to comply with the government claims act because the defendant did not comply with Government Code section 946.4, which requires a "public agency" to register with the State and County Roster of Public Agencies within 70 days of the accrual of the cause of action. However, given the facts judicially noticed, the County was not required to comply with the requirements of section 946.4. (See Gov. Code § 53050.)

If Plaintiff believes she is entitled to allege that she complied with the Government Claims Act, or was excused from doing so, the court will allow Plaintiff the opportunity to amend the FAC.

The County also argues that the FAC is barred by the one-year statute of limitations for medical malpractice claims even though the cause of action is stated as breach of contract. The court understands the County's concern that a professional negligence claim is disguised as a breach of contract cause of action. "[W]hen a cause of action is asserted against a health care provider on a legal theory other than medical malpractice, the courts must determine whether it is nevertheless based on the 'professional negligence' of the health care provider...." (*Smith v. Ben Bennett, Inc.* (2005) 133 Cal.App.4th 1507, 1514.)

The FAC does not allege professional negligence or that a person or entity failed to meet a standard of care. Rather, Plaintiff alleges that an agreement to provide a lab test was breached when the lab test was not performed. At the pleading stage, the court is unable to fully determine whether the gravamen of the breach of contract claim lies in professional negligence rather than in breach of an agreement.

The Demurrer is SUSTAINED with leave to amend. If Plaintiff chooses to file a Second Amended Complaint, it shall be filed by July 24, 2026.

The County to prepare the court's order consistent with this tentative ruling.